

TAB 5 (EXHIBIT SOURCE)

Order / hearing excerpts: Defense Motions in Limine Nos. 6 and 17
(911 audio, body-worn camera, CAD context; January 27 and February 18, 2025)

Source file: ALL-HEARING-TRANSCRIPTS-ROSARIO-AAA (1) (1).pdf

Underlying case: CGC-21-594102

Following pages are extracted from the hearing transcript PDF.

No emendation of content. Pagination follows the source file.

1 there was an excited utterance from the defendant admitting in
2 confession to the operator that he had struck me and ran me over
3 in the crosswalk.

4 This is the substance -- this is a fundamental substance of
5 the importance of this 911 record that the Defense is continuously
6 trying to deny and delay, or to try and exclude it from the
7 record.

8 THE COURT: Well, is that in the form of what we describe as
9 a computer aid dispatch, it's a printout of what was said?

10 MR. ROSARIO: Yes, sir. There is a CAD number that's been
11 provided. It was provided to them in September in an
12 interrogatory document that I had forwarded to them. They did
13 not, unfortunately, pay attention to it, or were just ignoring me,
14 and now once we get to the trial -- one would have presumed that
15 had the insurer done a proper investigation they would have
16 normally listened to all of the 911 records.

17 The Defense is trying to cherry-pick the police record
18 without pulling the 911 record that caused the police for them to
19 show up in the first place. So, it's convenient for them to try
20 to exclude that, because the information in there is damning to
21 their case.

22 THE COURT: Counsel?

23 MS. NAVARATNASINGHAM: Well, Your Honor, this is not our
24 lawsuit. We didn't bring this lawsuit. The burden is not on us
25 to produce evidence. And, if he has cited a police report in

1 special interrogatories or form interrogatories, we went through
2 the proper channels to subpoena the police report, and that's what
3 we have, and it has a custodian of records declaration.

4 He's the plaintiff. It's his burden if it's evidence that he
5 wants to present to this trial. After so many years, he has that
6 burden to produce that evidence in an admissible format.

7 MR. ROSARIO: Okay. I have included that in the opposition
8 to the defense's motion in limine number 17. It's attached to
9 that, as well as the CD scans, and as well as the official
10 numbers. It's fully in that printout for you to look at. I
11 believe it's on --

12 MR. SOBATI: It's -- that is the link, the 103 pages.

13 MR. ROSARIO: It's 103, but I believe it's Exhibit A, at
14 page 26, I believe, here. Hold on a second. One second, Your
15 Honor.

16 Yes, it's at page -- page 40. Starting at 39 of that
17 document, 40 through 46 is the CAD records, as well as the
18 dialogue directly from the driver stating, and I quote, the
19 nine -- the CAD number says, "RP in van and hit a male
20 pedestrian."

21 And, then there was a subsequent call almost 30 seconds
22 later, at the exact same time that the first call was going on,
23 saying that a woman had driven by at an earlier point, and she had
24 seen me on the sidewalk, and there was no vehicle nor any person
25 there.

1 We have two 911 records that the Defense has been trying to
2 suppress. And, I -- I can't -- I wouldn't be able to try the case
3 without the official 911 records from which the police report that
4 they're depending on was instigated. It doesn't provide
5 completeness, Your Honor.

6 THE COURT: Defense counsel?

7 MS. NAVARATNASINGHAM: Your Honor, the recordings, again,
8 completely lacks foundation; not authenticated. We have no idea
9 what they're -- Mr. Rosario is referring to. We have not heard
10 any recordings from our client.

11 This third-party witness that he says saw the accident, she
12 -- there is no identifying information on that whatsoever, and we
13 don't know where the recording came from. And, that's the subject
14 of our motion in limine. It's too late. We're on the first day
15 of trial here, and we're -- we oppose any continuance and would
16 like to proceed.

17 THE COURT: Okay. So, there's a couple of things going on
18 here. First of all, Mr. Rosario, the items that you seek to
19 retrieve are not available, apparently. Although you might have
20 submitted some kind of document which has been referred to as
21 computed aided dispatch, those are typically, from what I recall,
22 typed out shorthand of 911 calls; okay? So, that's one thing.

23 That would be in the course -- it would be a form of hearsay.
24 But, I would have to see the -- see whether or not that material
25 would be subject to a hearsay exception which would allow you to

1 THE COURT: Well, no. I think -- I want to make it clear.
2 You said that you have a motion -- you have a number of motions in
3 limine.

4 MR. ROSARIO: Yes.

5 THE COURT: We will do your opposition to defense motion in
6 limine number 17 first. Let's just get that out of the way first.

7 MR. ROSARIO: Okay.

8 THE COURT: Then we will deal with any other motions in
9 limine that you have submitted, and then we will take up the
10 Defense motions in limine. Understood? Let's get these in order.

11 All right, sir.

12 MR. ROSARIO: Number 17.

13 THE COURT: Yes. Let's just let him make his motion to have
14 this evidence, which apparently consists of the items identified
15 in his opposition to defense motion in limine number 17 as the
16 various Exhibits A through L. We're going to go through them one
17 by one.

18 MS. NAVARATNASINGHAM: That was in this large stack, Your
19 Honor, that --

20 THE COURT: I believe it is entitled --

21 MR. ROSARIO: OPP 017. I have that particular format. Yes,
22 it would be titled, Your Honor, Defendant --

23 THE COURT: Do you have that?

24 MS. NAVARATNASINGHAM: We're looking -- we're looking for it.

25 MR. ROSARIO: Plaintiff's Opposition to Defendant's Motion in

1 Limine number 17.

2 MR. SOBATI: Your Honor, in theory, chronologically as we
3 just printed that, that should be somewhere down two-thirds of the
4 way down that pile. I do apologize for that.

5 MR. ROSARIO: I believe -- I believe eliminating this would
6 not only violate my 14th Amendment to the U.S. Constitution --

7 THE COURT: Wait a minute. Wait a minute. Before you say
8 anything you have to give the other side the opportunity to review
9 your opposition.

10 MR. ROSARIO: Okay.

11 THE COURT: Sir, do you have a copy for defense counsel, or
12 can you identify it?

13 MS. NAVARATNASINGHAM: We located it, Your Honor.

14 MR. ROSARIO: In the meantime --

15 THE COURT: No, no, no. Let me keep you straight and narrow.
16 First thing we're going to do is the opposition that you have to
17 defendant's motion in limine number 17.

18 MR. ROSARIO: Okay.

19 THE COURT: You have various exhibits it looks like you want
20 to have admitted in this case.

21 MR. ROSARIO: Yes, sir.

22 THE COURT: We are going to go through each and every one of
23 them so we have a clear path with respect to each of these
24 exhibits.

25 MR. ROSARIO: Okay.

1 jurors, it is not evidence. It is simply there for you to use as
2 a guide.

3 MR. ROSARIO: Okay.

4 THE COURT: Very well.

5 MR. ROSARIO: I guess the problem is then, if -- if this is
6 admitted, I have to strike the motion to strike their -- the
7 police report, because they wouldn't have a causation that the
8 police report exists if it wasn't for the 911 call that caused it.
9 So, they're -- by blocking it, they are essentially blocking the
10 police report --

11 THE COURT: I don't understand what the context is, because
12 police reports generally, under the Evidence Code and under
13 applicable law, are not admissible.

14 MR. ROSARIO: Oh. Thank you for clarifying that, Your Honor.

15 THE COURT: All right. What other motions in limine would
16 you like to call the Court's attention to?

17 MR. ROSARIO: I would like to have the TBI brain scans from
18 SimonMed added in. Like I said, I am not familiar with the
19 protocols of -- of discovery and evidence, and that's why I have
20 been asking for the -- the accommodation for my -- for my -- for
21 my mental capacity and the relief, Your Honor, because I want to
22 make sure that the jury -- who are the final arbiters of truth --
23 are given the opportunity to see all available evidence, not being
24 precluded and having the Defense to decide on what the jury should
25 see, but let the jury decide on what is substantive and probative

1 THE COURT: Well, in order to have the body cameras admitted
2 you will have to have police officers to authenticate the body
3 camera images or video recordings. That is not a function of a
4 motion in limine.

5 MR. ROSARIO: Okay.

6 THE COURT: It will be up to you to lay the foundation in
7 order to have the evidence admitted at trial before a jury.

8 MR. ROSARIO: Okay.

9 THE COURT: Let's turn now, if you are prepared to do so, I
10 have very -- I have roughly 17 -- 16 or 17 motions in limine which
11 have been presented to the Court by the Defense. I understand
12 that you have presented a global response to the Court that --
13 with respect to an opposition to defendant's motions in limine.

14 So, let's proceed with motion in limine number one by
15 Defense. It is to exclude plaintiff from offering expert or
16 non-retained expert testimony.

17 Your motion, Mr. Reyna or Ms. -- I'm sorry --
18 Navaratnasingham?

19 MS. NAVARATNASINGHAM: Yes, Your Honor. We submit on our
20 motion paperwork. Mr. Rosario did not designate any experts --
21 retained or non-retained experts. We're asking that that
22 testimony and opinion be excluded.

23 MR. ROSARIO: No. I specified them twice to you.

24 THE COURT: What have you specified?

25 MR. ROSARIO: I specified non-retained experts on, I believe

1 this December 6th e-mail that Mr. Rosario has referred
2 to and the e-mail is pretty consistent with, you know,
3 our motion in limine.

4 The e-mail has general statements of AAA's
5 tactics to delay the matter and our tactics to delay the
6 matter. I don't see anything specific in this e-mail
7 with reference to the 911 calls, and I don't see any
8 reference in here to a request for a continuance, number
9 one.

10 Number two, with reference to his allegations
11 of us lying, I'm not -- we did not -- so our motion in
12 limine to exclude the 911 call and there was, like, a
13 call statement or a call log was very specific to those
14 two items, and I am representing to this Court that we
15 did not have those two items until the day of the MSC
16 and those items were produced in connection with the
17 settlement to the settlement officer.

18 Now, if Mr. Jessup, who was here this morning,
19 his prior defense counsel, said that he produced those
20 links, okay, and he's going to produce those links to
21 me. I believe this Court, when you granted our motion
22 in limine, you did so without prejudice subject to that
23 discovery being produced.

24 And here again today the Court ordered
25 Mr. Jessup to provide me with the links, and I believe

1 people and depose them, please, Your Honor.

2 THE COURT: Okay. Any final comments?

3 MS. NAVARATNASINGHAM: I had two comments, Your
4 Honor, and now I'm forgetting them because so much has
5 been said.

6 Well, I mean, we oppose the continuance. He's
7 been pro per since August. He's had the file since
8 August. According to Mr. Jessup, the body cam footage,
9 the 911 call, all this stuff has been in his possession
10 since August.

11 The motion in limine that I filed was saying
12 that the 911 call was not produced in the normal course
13 of discovery. Your Honor has cured that concern of his,
14 and you are allowing him to present that and subject to
15 relevance and other objections.

16 You know, the identification of late witnesses
17 is not grounds for a continuance. You are free to call
18 a witness to testify at trial. You don't necessarily
19 have to take a deposition. You know, you can list
20 people on your witness list. None of this is cause for
21 a continuance.

22 And so we, of course, object and would like to
23 select a trial date.

24 THE COURT: Very well.

25 Anything else, Mr. Rosario?